From:	Edward Snook
To:	Scanning
Subject:	FW: Land North of A420 - Pumping Station (S/RES/24/0551)
Date:	18 February 2025 12:51:38

From: Edward Snook
Sent: 07 February 2025 17:29
To: Scanning <scanning@swindon.gov.uk>
Subject: FW: Land North of A420 - Pumping Station (S/RES/24/0551)

From: Jonathan Lynch <jonathan.m.lynch@outlook.com>
Sent: 07 February 2025 14:32
To: Edward Snook <ESnook@swindon.gov.uk>; Des Hobson <DHobson@swindon.gov.uk>
Cc: SBC Development Control <SDevelopmentControl@swindon.gov.uk>; Scanning <scanning@swindon.gov.uk>
Subject: Re: Land North of A420 - Pumping Station (S/RES/24/0551)

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Hi Ed, I have looked at the comments tracker and revised my comments accordingly. Please see below.

S/RES/24/0551 / Land North Of A420, Eastern Villages, Swindon
Reserved Matters application (following planning application S/OUT/13/1555) for details of the layout, scale, appearance, access and landscaping in relation to a foul water pumping station. The outline planning application was subject to and submitted with an Environmental Impact Assessment.

SUMMARY – FURTHER INFORMATION REQUESTED
I have reviewed the ecological information submitted in support of this application and advise that insufficient information has been provided to determine the application. The following information is requested:

- Reconsideration of section 4.13 of the Arboricultural Assessment (FPCR, January 2025) regarding the potential veteran status of T57 (mature oak tree)

Please consider these comments to supersede my previous comments of 31 January 2024. I have since been provided with a document titled *Comments Tracker* (David Lock Associates, January 2025) which contains details of the applicant's responses to consultations received up to 23 January 2025.

I have removed my request for a CEMP as the applicant has confirmed that this will come forward as a separate condition discharge. I have no comments to make on the proposed planting schedule.

PREVIOUS COMMENTS

I note that previous ecological comments on this application (dated 20 September 2024) objected to the approval of reserved matters due to a *"67m loss of hedgerow and a mature Oak"* and due to the lack of a Construction and Environmental Management Plan (CEMP). This mature oak (referred to as T57 in the submitted Arboricultural Assessment [FPCR, January 2025]) is still proposed for removal in the revised plans; this is considered below. No CEMP has been submitted but this is not strictly required until discharge of condition 37 for this sub-phase is sought.

Previous comments also noted that the planting schedule should incorporate blackthorn, alder buckthorn, elm and ash. The applicant has responded *"The woodland and hedgerow species have been approved through the South Marston FLEAMP (S/COND/22/0316) and the proposal is consistent with the typical species list. Please note that the proposed Rhamnus Carthartica is a form of Buckthorn. No action required"*. I have no comments to make on this planting schedule.

T57 REMOVAL

Regarding the proposed removal of T57, I note that it is under a tree preservation order so its removal is at the LPA's discretion. I also have concerns that it may meet the definition of 'veteran' tree as provided in the Schedule of The Biodiversity Gain Requirements (Irreplaceable Habitat) Regulations 2024. I understand that T57 is proposed for removal for reasons of visibility and access. If T57 is indeed a veteran tree, paragraph 193(c) of the NPPF 2024 would still apply: "*development resulting in the loss or deterioration of irreplaceable habitats (such as ancient woodland and ancient or veteran trees) should be refused, unless there are wholly exceptional reasons and a suitable compensation strategy exists"*. This paragraph was also in the previous NPPF (2023) (186[c]). The 2024 Framework defines "wholly exceptional" as referring to NSIP projects or any project *"where the public benefit would clearly outweigh the loss or deterioration of habitat."*

Section 4.13 of the Arboricultural Assessment states that the tree is not a veteran, but this consideration is informed by BS:5837 (*Trees in relation to design, demolition and construction*) and Lonsdale (2013) (*Ancient and other veteran trees: further guidance on management*). I consider the definition found within the Irreplaceable Habitat Regulations (2024) to supersede the BS:5837/Lonsdale as it is law. The following is an extract from the IH Regulations where 'veteran tree' is defined:

> *Veteran trees exhibit one or more of the following—*
> *(i) significant decay features such as deadwood, hollowing or signs of advanced decay in the trunk or major limbs*
> *(ii) a large girth, depending on and relative to species, site and management history*
> *(iii) a high value for nature, especially in hosting rare or specialist fungi, lichens and deadwood invertebrates*

I note that the Arboricultural Assessment (4.7) states *"These trees [including T57] were typical of mature English oak trees, with varying extents of naturally accumulated deadwood within the canopy"* which indicates that (i) applies. I recommend the Arboricultural Assessment is revised to account of the Irreplaceable Habitat Regulations (2024). If it is determined that T57 meets the above definition of 'veteran tree' having one or more of the specified features, paragraph 193(c) of the NPPF 2024 would apply, requiring *"wholly exceptional reasons and a suitable compensation strategy"* for the scheme. Redesign of the proposals or refusal would therefore be recommended.

Again, being under a tree preservation order, the decision to remove this tree is at the discretion of the LPA.

If you have any queries regarding these comments, please do not hesitate to get in touch.

Jonathan Lynch (BSc, MSc)
JM LYNCH ECOLOGY LTD

This response was submitted following consideration of the following documents:

- Arboricultural Assessment (FPCR, January 2025)
- Comments Tracker (David Lock Associates, January 2025)
- Pumping Station Landscape Plan (FPCR, January 2025)
- Landscape, Ecology and Arboricultural Management Plan (LEAMP) (FPCR, January 2025)
- Foul Water Pumping Station Location Plan (David Lock Associates, January 2025)